

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Kastner	Team: Squad #14	CCRB Case #: 201706334	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/26/2017 8:30 PM	Location of Incident: Outside of 202-15 Hillside Avenue	Precinct: 107	18 Mo. SOL 1/26/2019	EO SOL 1/26/2019	
Date/Time CV Reported Fri, 07/28/2017 2:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/03/2017 11:03 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Luz Herbert	05243	939657	SRG 4

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christophe Vinciguerra	08115	952326	SRG 4

Officer(s)	Allegation	Investigator Recommendation
A.POF Luz Herbert	Abuse: Police Officer Luz Herbert threatened to arrest § 87(2)(b)	

Case Summary

On July 28, 2017, § 87(2)(b) called the IAB Command Center and filed this complaint, which was received at the CCRB on August 3, 2017.

On July 26, 2017, at approximately 8:30 p.m., in front of Foodtown, located at 202-15 Hillside Avenue in Queens, PO Luz Herbert of SRG 4 allegedly threatened to arrest § 87(2)(b) (**Allegation A: Abuse of Authority,** § 87(2)(g) There is no video evidence in this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Luz Herbert threatened to arrest § 87(2)(b)

§ 87(2)(b) (Board Review 01) said that after engaging in a dispute with a female Foodtown employee, he exited the supermarket and approached a patrol van containing PO Luz Herbert and PO Christopher Vinciguerra of SRG 4. § 87(2)(b) reported to the officers that the dispute involved the employee refusing to accept damaged bottles that he wanted to return in exchange for deposits. PO Vinciguerra entered the supermarket while § 87(2)(b) remained outside with PO Herbert. He returned approximately five minutes later and told § 87(2)(b) that the store did not have to accept his damaged bottles.

§ 87(2)(b) and the officers argued about the topic and the officers became agitated because § 87(2)(b) was not backing down. PO Herbert allegedly yelled, "You threw a bottle at [the supermarket employee]. That's harassment. Do you want us to file a report against you?" § 87(2)(b) denied doing so. PO Herbert allegedly repeated the threat approximately four more times as the argument continued. § 87(2)(b) eventually said he wanted the supermarket employee arrested. Instead, the officers entered their patrol van and left the scene.

PO Herbert (Board Review 02) and PO Vinciguerra (Board Review 03) both said that § 87(2)(b) flagged them down and reported that a supermarket employee had refused him service. Together, the officers entered the supermarket and spoke with the employee, who alleged that § 87(2)(b) threw a bottle at her head. PO Herbert said she asked the supermarket employee whether she wanted to file a complaint report for harassment. The employee declined and said she just wanted § 87(2)(b) to stay out of the supermarket.

The officers returned to § 87(2)(b) and told him what the supermarket employee said. Both officers said that § 87(2)(b) subsequently became irate, yelled, and said he wanted the supermarket employee arrested. PO Herbert said that § 87(2)(b) acted this way in response to being accused of throwing the bottle, though PO Vinciguerra said that it was in response to PO Herbert telling § 87(2)(b) that a [criminal complaint] report for harassment “could be” filed against him for allegedly throwing the bottle. PO Herbert said she told § 87(2)(b) that the supermarket employee did not want to file a criminal court complaint against him. Both PO Herbert and PO Vinciguerra both denied that PO Herbert threatened § 87(2)(b).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s third CCRB complaint. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- PO Herbert, a 12-year-member-of-the-service, has two prior CCRB complaints filed against her comprising a total of three allegations, one of which was substantiated. In case number 200801853, PO Herbert was found to have improperly questioned an individual. The Board recommended she be issued a command discipline, and the NYPD imposed Command Discipline A (see officer history). § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) initially accepted mediation and this case was sent to the Mediation Unit on September 13, 2017. However, § 87(2)(b) changed his mind and this case was returned to the Investigations Division on October 25, 2017.
- As of November 27, 2017, § 87(2)(b) has not filed a Notice of Claim with the NYC Comptroller's Office regarding this incident (Board Review 05).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 14

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature _____ Print Title & Name _____ Date _____